

Where There's a Will, There's a Way

A will is a legal document that's used to transfer assets you own to the people or organizations you want to leave them to after your death. In it, you name an executor (or personal representative), who is the person you choose to carry out your wishes, and an alternate in case your first choice is unable to serve. If you have minor children, you use the will to name a guardian to care for them.

Who Needs a Will?

As soon as you acquire your first assets as an adult (car, stocks, bonds, stereo equipment, savings accounts), get married, or have a baby, you should make a will. If you die intestate (without a will) the state will determine who gets what. More importantly, the state will decide who will gain guardianship over your minor children, regardless of what your wishes were and who you expressed them to. Don't operate under the common misconception that if you die intestate, your spouse will inherit all your property. In fact, if you have kids, in most states your spouse will receive between one-third and one-half of your assets and the rest will be split among your kids, no matter how young they are.



You may not feel that the person you appoint as guardian to raise your kids is the best person to manage their financial affairs. If this is the case, you can use your will to name a trustee, who will work with the guardian in your kids' best financial interest.

If you're married with no kids, in most states your spouse will get all of your assets. This might be particularly troublesome if you have children